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AMAZON.COM SERVICES, LLC and
AMAZON LOGISTICS, INC.

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

MIGUEL LERMA, JR., individually and on behalf of all others similarly situated,

Plaintiff,

vs.

AMAZON.COM SERVICES, LLC., AMAZON LOGISTICS, INC., ACCURATE BACKGROUND, and DOES 1-5,

Defendants.

Case No. 8:22-cv-01727-FWS-JDE

**ANSWER OF DEFENDANTS AMAZON.COM SERVICES, LLC AND AMAZON LOGISTICS, INC.'S TO PLAINTIFF'S FIRST AMENDED COMPLAINT**

Judge: Hon. Fred W. Slaughter
Magistrate Judge: John D. Early
Ctrm: 10D

Defendants Amazon.com Services, LLC and Amazon Logistics, Inc. (together, "Amazon" or "Defendants"), by and through their counsel of record, submit the following answer and defenses to Plaintiff Miguel Lerma ("Plaintiff")'s First Amended Class Action Complaint ("FAC").[1]

## SUMMARY OF ACTION[2]

1. Amazon avers that the allegations contained in Paragraph 1 of the FAC constitute conclusions of law to which no response is required. To the extent a response is required, Amazon denies that this case may proceed either as a class action or as alleged individual claims by Plaintiff, but admits that Plaintiff purports to bring this action as a putative class action on behalf of himself and others similarly situated. Amazon denies all substantive allegations in this Paragraph 1, including the allegation that it failed to conduct an individualized assessment of whether Plaintiff's conviction history had a direct and adverse relationship with the specific duties of an Amazon Fresh store associate that justified denying him the position.

2. Amazon avers that the allegations contained in Paragraph 2 of the FAC constitute conclusions of law to which no response is required. To the extent a response is required, Amazon denies that it has violated the law, including the California Fair Chance Act, Government Code § 12952 ("Fair Chance Act").

3. Amazon avers that the allegations contained in Paragraph 3 of the FAC

[1] On May 26, 2023, the Court dismissed Plaintiff's First Cause of Action under California Megan's Law (Cal. Pen. Code § 290.46 et seq.), Third Cause of Action under the Investigative Consumer Reporting Agencies Act, Fourth Cause of Action under the Fair Credit Reporting Act, and Fifth Cause of Action under the Unfair Competition Law. ECF No. 36. On August 14, 2023, in response to the Court's Order to Show Cause, Plaintiff confirmed that he would only be pursuing his Second Cause of Action under the California Fair Chance Act (Cal. Gov't Code § 12952). ECF No. 44. Accordingly, in this Answer, Amazon only responds to allegations concerning Plaintiff's claims under the California Fair Chance Act and hereby denies all allegations concerning the dismissed claims.

[2] This answer incorporates the FAC's headings for ease of reference only. Amazon does not construe the headings to constitute allegations. To the extent that the headings are deemed to constitute allegations, Amazon denies the headings asserted in the FAC.

constitute conclusions of law to which no response is required. To the extent a response is required, Amazon denies that it failed to conduct an individualized assessment of whether Plaintiff's conviction history had a direct and adverse relationship with the specific duties of an Amazon Fresh store associate that justified denying him the position. All other allegations in this Paragraph pertain to dismissed claims and therefore no response is required.

**THE PARTIES**

4. Amazon avers that it lacks sufficient knowledge and information to form a belief as to the allegations in Paragraph 4 and on that basis denies the allegations.

5. Amazon admits that Defendant Amazon.com Services, LLC is a Delaware corporation headquartered in Seattle, Washington.

6. Amazon admits that Defendant Amazon Logistics, Inc. is a Delaware corporation headquartered in Seattle, Washington.

7. Amazon admits that Accurate is a consumer reporting agency that has provided consumer reports to Amazon for employment purposes, but otherwise denies the allegations in Paragraph 7.

8. Amazon avers that the allegations contained in Paragraph 8 of the FAC constitute conclusions of law to which no response is required and on that basis Amazon denies the allegations in this paragraph.

**JURISDICTION AND VENUE**

9. Amazon avers that the allegations contained in Paragraph 9 of the FAC constitute conclusions of law to which no response is required. Amazon does not contest the Court's jurisdiction over this matter, but denies any allegations of wrongdoing.

10. Amazon avers that the allegations contained in Paragraph 10 of the FAC constitute conclusions of law to which no response is required. Amazon does not contest venue, but denies any allegations of wrongdoing.

## STATEMENT OF FACTS

11. Amazon avers that it lacks sufficient knowledge and information to form a belief as to whether Plaintiff is an Airforce Veteran and former Federal Officer for the United States Department of Homeland Security ("DHS") and on that basis denies the allegations.

12. Amazon avers that it lacks sufficient knowledge and information to form a belief as to whether, after high school, Plaintiff enlisted in the United States Airforce, served in the armed forces for six years, was honorably discharged as a Staff Sergeant of the 49th Security Forces Squadron in 2005, and was a Customs and Border Protection Officer for approximately six years. Upon information and belief, Amazon avers that Plaintiff was arrested and charged with committing sexual offenses in 2011 and was convicted of sexual offenses in 2013. Amazon denies any other allegations contained in Paragraph 12 of the FAC.

13. Amazon avers that it lacks sufficient knowledge and information to form a belief as to the allegations in Paragraph 13 of the FAC and on that basis denies the allegations.

14. Amazon avers that it lacks sufficient knowledge and information to form a belief as to the allegations in Paragraph 14 of the FAC and on that basis denies the allegations.

15. Amazon avers that it lacks sufficient knowledge and information to form a belief as to the allegations in Paragraph 15 of the FAC and on that basis denies the allegations.

16. Amazon denies the allegations made against it in Paragraph 16 of the FAC. Amazon avers that it lacks sufficient knowledge and information to form a belief as to the remaining allegations and on that basis denies the allegations.

17. Amazon admits that in October or November 2021 Plaintiff applied for a seasonal Warehouse Associate position at its fulfillment center in Mission Viejo, California. Amazon further admits that it offered the position to Plaintiff in

November 2021 contingent upon passing a drug test, background check and other pre-employment requirements.

18. Amazon admits that Plaintiff passed the drug test and completed other employment requirements and avers that he passed the background check because he failed to disclose his prior felony rape convictions, as required and requested by Amazon after he had been extended a conditional offer of employment. Amazon admits that Plaintiff began work as a seasonal Warehouse Associate at some point in November 2021. Amazon denies Plaintiff's characterization that he performed the job "very well." Amazon lacks sufficient knowledge and information to form a belief as to the remaining allegations in Paragraph 18 of the FAC and on that basis denies the allegations.

19. Amazon admits that Plaintiff's seasonal Warehouse Associate position with Amazon ended on March 4, 2022, and further admits that Plaintiff received an email from Amazon on or about February 26, 2022, along the lines stated by Plaintiff in Paragraph 19 of the FAC.

20. Amazon admits that, on or about February 28, 2022, it emailed Plaintiff responding to an email that he had sent inquiring about continuing his employment with Amazon and that the contents of the email included the statements and information alleged in Paragraph 20 of the FAC.

21. Amazon admits the allegations contained in Paragraph 21 of the FAC.

22. Amazon admits that Plaintiff applied to be an Overnight Food Store Associate at its Amazon Fresh store in Mission Viejo, California. Amazon further admits that Amazon Fresh is an online and physical grocery store. Amazon avers that the Overnight Food Store Associate position for which Plaintiff applied was a customer-facing role that included, among other potential duties, delivering excellent customer service when answering questions and interacting with customers and preparing and packaging food products. Amazon denies any other allegations contained in Paragraph 22 of the FAC.

23. Amazon admits the allegations contained in Paragraph 23 of the FAC.

24. Amazon admits that, on or about March 22, 2022, Accurate completed its background check report on Plaintiff. Amazon lacks sufficient knowledge and information to form a belief as to the remaining allegations contained in Paragraph 24 of the FAC and on that basis denies them.

25. Amazon avers that Accurate provided a copy of the background check report on Plaintiff to Amazon, which contained Plaintiff's felony rape convictions. Amazon further avers that, due to the criminal history reflected in the background check report, Amazon conducted an individualized assessment of Plaintiff's felony rape convictions and determined that Plaintiff's felony rape convictions had a direct and adverse relationship with the specific duties of the Overnight Food Service Associate job and made a preliminary decision to rescind his conditional job offer. Amazon admits that on March 23, 2022, Accurate, on Amazon's behalf, emailed Plaintiff a pre-adverse action notice, which contained, among other information, the information described in Paragraph 25 of the FAC.

26. Amazon admits that the felony rape charges and convictions for Plaintiff antedate the background check report by seven years, but Amazon avers that Plaintiff's release from prison does not.

27. Amazon admits that on April 6, 2022, Accurate, on Amazon's behalf, emailed Plaintiff an adverse action notice, which contained, among other information, the information described in Paragraph 27 of the FAC.

28. Amazon denies the allegations in Paragraph 28 of the FAC.

29. Amazon denies the allegations in Paragraph 29 of the FAC.

30. Amazon avers that it lacks sufficient knowledge and information to form a belief as to whether Plaintiff would like to apply again to work for Amazon, and denies any other allegations contained in Paragraph 30 of the FAC.

**CLASS ACTION ALLEGATIONS**

31. Amazon avers that the allegations contained in Paragraph 31 of the

FAC constitute conclusions of law to which no response is required. To the extent a response is required, Amazon admits that Plaintiff purports to bring this action on a class basis, but denies this case may proceed either as a class action or as alleged individual claims by Plaintiff, denies that Plaintiff or any putative class member is entitled to any relief on the claims pled, and denies any other allegations contained in Paragraph 31 of the FAC.

32. Amazon avers that the allegations contained in Paragraph 32 of the FAC constitute conclusions of law to which no response is required. To the extent a response is required, except to admit that Plaintiff purports to seek certification of this lawsuit as a class action, Amazon denies that Plaintiff or any putative class member is entitled to any relief on the claims pled, denies that this case may proceed either as a class action or as alleged individual claims by Plaintiff, and denies the remaining allegations contained in Paragraph 32 of the FAC.

**Megan's Law Class**

33. Because Plaintiff's Megan's Law claim has been dismissed and Plaintiff has confirmed he will not be pursuing this claim, Amazon is not required to respond to the allegations in Paragraph 33 of the FAC and on that basis denies the allegations.

34. Because Plaintiff's Megan's Law claim has been dismissed and Plaintiff has confirmed he will not be pursuing this claim, Amazon is not required to respond to the allegations in Paragraph 34 of the FAC and on that basis denies the allegations.

35. Because Plaintiff's Megan's Law claim has been dismissed and Plaintiff has confirmed he will not be pursuing this claim, Amazon is not required to respond to the allegations in Paragraph 35 of the FAC and on that basis denies the allegations.

**Fair Chance Class**

36. Amazon denies the allegations in Paragraph 36 of the FAC.

37. Amazon denies the allegations in Paragraph 37 of the FAC.

38. Amazon denies the allegations in Paragraph 38 of the FAC.

**ICRAA Class**

39. Because Plaintiff's ICRAA claim has been dismissed, Plaintiff has confirmed he will not be pursuing this claim, and this claim was not pled against Amazon, Amazon is not required to respond to the allegations in Paragraph 39 of the FAC and on that basis denies the allegations.

40. Because Plaintiff's ICRAA claim has been dismissed, Plaintiff has confirmed he will not be pursuing this claim, and this claim was not pled against Amazon, Amazon is not required to respond to the allegations in Paragraph 40 of the FAC and on that basis denies the allegations.

41. Because Plaintiff's ICRAA claim has been dismissed, Plaintiff has confirmed he will not be pursuing this claim, and this claim was not pled against Amazon, Amazon is not required to respond to the allegations in Paragraph 41 of the FAC and on that basis denies the allegations.

**FCRA Class**

42. Because Plaintiff's FCRA claim has been dismissed, Plaintiff has confirmed he will not be pursuing this claim, and this claim was not pled against Amazon, Amazon is not required to respond to the allegations in Paragraph 42 of the FAC and on that basis denies the allegations.

43. Because Plaintiff's FCRA claim has been dismissed, Plaintiff has confirmed he will not be pursuing this claim, and this claim was not pled against Amazon, Amazon is not required to respond to the allegations in Paragraph 43 of the FAC and on that basis denies the allegations.

44. Because Plaintiff's FCRA claim has been dismissed, Plaintiff has confirmed he will not be pursuing this claim, and this claim was not pled against Amazon, Amazon is not required to respond to the allegations in Paragraph 44 of the FAC and on that basis denies the allegations.

**The Classes**

45. Amazon admits that it employs many individuals in California and that many individuals have applied for employment with the Company in California each year during the putative class period, but it otherwise denies the allegations in Paragraph 45 of the FAC.

46. Amazon denies the allegations in Paragraph 46 of the FAC.

47. Amazon denies the allegations in Paragraph 47 of the FAC.

48. Amazon denies the allegations in Paragraph 48 of the FAC.

49. Amazon denies the allegations in Paragraph 49 of the FAC.

**FIRST CAUSE OF ACTION**

**CALIFORNIA MEGAN'S LAW**

**Cal. Pen. Code § 290.46 *et seq.***

**(Against Defendants)**

50. Amazon incorporates and realleges its responses to the allegations contained in Paragraphs 1 through 49, as if those responses were fully set forth herein.

51. Because Plaintiff's Megan's Law claim has been dismissed and Plaintiff has confirmed he will not be pursuing this claim, Amazon is not required to respond to the allegations in Paragraph 51 of the FAC and on that basis denies the allegations.

52. Because Plaintiff's Megan's Law claim has been dismissed and Plaintiff has confirmed he will not be pursuing this claim, Amazon is not required to respond to the allegations in Paragraph 52 of the FAC and on that basis denies the allegations.

53. Because Plaintiff's Megan's Law claim has been dismissed and Plaintiff has confirmed he will not be pursuing this claim, Amazon is not required to respond to the allegations in Paragraph 53 of the FAC and on that basis denies the allegations.

54. Because Plaintiff's Megan's Law claim has been dismissed and Plaintiff has confirmed he will not be pursuing this claim, Amazon is not required to respond to the allegations in Paragraph 54 of the FAC and on that basis denies the allegations.

**SECOND CAUSE OF ACTION**

**FAIR CHANCE ACT**

**Cal. Gov. Code § 12952**

**(Against Amazon)**

55. Amazon incorporates and realleges its responses to the allegations contained in Paragraphs 1 through 54, as if those responses were fully set forth herein.

56. Amazon avers that the allegations contained in Paragraph 56 of the FAC constitute statements of law to which no response is required. To the extent a response is required, Amazon admits that Plaintiff has accurately recited portions of the statutory language contained within California Government Code § 12952, but denies that it has violated the California Fair Chance Act.

57. Amazon admits that Defendant Amazon.com Services, LLC was the employer that extended Plaintiff a conditional job offer for the Overnight Food Service Associate position. As such, Amazon denies the allegations in Paragraph 57 with respect to Defendant Amazon Logistics, Inc.

58. Amazon admits the allegations in Paragraph 58 of the FAC with respect to Defendant Amazon.com Services, LLC, but denies them with respect to Defendant Amazon Logistics, Inc.

59. Amazon admits that Defendant Amazon.com Services, LLC previously employed Plaintiff in a seasonal Warehouse Associate position. Amazon further admits that it reviewed Plaintiff's felony rape convictions contained within the background check report prepared and provided by Accurate. Amazon avers that, based on an individualized assessment of that conviction

history, Amazon preliminarily decided to rescind Plaintiff's conditional offer for the Overnight Food Service Associate position. Amazon otherwise denies the allegations in Paragraph 59 of the FAC.

60. Amazon denies the allegations in Paragraph 60 of the FAC.

61. Amazon denies the allegations in Paragraph 61 of the FAC and avers that the Overnight Food Store Associate position for which Plaintiff applied was a customer-facing role that included, among other potential duties, delivering excellent customer service when answering questions and interacting with customers and preparing and packaging food products.

62. Amazon denies the allegations in Paragraph 62 of the FAC and denies that Plaintiff or any putative class member is entitled to any relief whatsoever.

**THIRD CAUSE OF ACTION**
**INVESTIGATIVE CONSUMER REPORTING AGENCIES ACT**
**Cal. Civ. Code § 1786.18**
**(Against Accurate Background)**

63. Amazon incorporates and realleges its responses to the allegations contained in Paragraphs 1 through 62, as if those responses were fully set forth herein.

64. Because Plaintiff's ICRAA claim has been dismissed, Plaintiff has confirmed he will not be pursuing this claim, and this claim was not pled against Amazon, Amazon is not required to respond to the allegations in Paragraph 64 of the FAC and on that basis denies the allegations.

65. Because Plaintiff's ICRAA claim has been dismissed, Plaintiff has confirmed he will not be pursuing this claim, and this claim was not pled against Amazon, Amazon is not required to respond to the allegations in Paragraph 65 of the FAC and on that basis denies the allegations.

66. Because Plaintiff's ICRAA claim has been dismissed, Plaintiff has confirmed he will not be pursuing this claim, and this claim was not pled against

Amazon, Amazon is not required to respond to the allegations in Paragraph 66 of the FAC and on that basis denies the allegations.

67. Because Plaintiff's ICRAA claim has been dismissed, Plaintiff has confirmed he will not be pursuing this claim, and this claim was not pled against Amazon, Amazon is not required to respond to the allegations in Paragraph 67 of the FAC and on that basis denies the allegations.

68. Because Plaintiff's ICRAA claim has been dismissed, Plaintiff has confirmed he will not be pursuing this claim, and this claim was not pled against Amazon, Amazon is not required to respond to the allegations in Paragraph 68 of the FAC and on that basis denies the allegations.

69. Because Plaintiff's ICRAA claim has been dismissed, Plaintiff has confirmed he will not be pursuing this claim, and this claim was not pled against Amazon, Amazon is not required to respond to the allegations in Paragraph 69 of the FAC and on that basis denies the allegations.

**FOURTH CAUSE OF ACTION**
**FAIR CREDIT REPORTING ACT**
**15 U.S.C. § 1681b(b)(1)**
**(Against Accurate Background)**

70. Amazon incorporates and realleges its responses to the allegations contained in Paragraphs 1 through 69, as if those responses were fully set forth herein.

71. Because Plaintiff's FCRA claim has been dismissed, Plaintiff has confirmed he will not be pursuing this claim, and this claim was not pled against Amazon, Amazon is not required to respond to the allegations in Paragraph 71 of the FAC and on that basis denies the allegations

72. Because Plaintiff's FCRA claim has been dismissed, Plaintiff has confirmed he will not be pursuing this claim, and this claim was not pled against Amazon, Amazon is not required to respond to the allegations in Paragraph 72 of

the FAC and on that basis denies the allegations.

73. Because Plaintiff's FCRA claim has been dismissed, Plaintiff has confirmed he will not be pursuing this claim, and this claim was not pled against Amazon, Amazon is not required to respond to the allegations in Paragraph 73 of the FAC and on that basis denies the allegations.

74. Because Plaintiff's FCRA claim has been dismissed, Plaintiff has confirmed he will not be pursuing this claim, and this claim was not pled against Amazon, Amazon is not required to respond to the allegations in Paragraph 74 of the FAC and on that basis denies the allegations.

75. Because Plaintiff's FCRA claim has been dismissed, Plaintiff has confirmed he will not be pursuing this claim, and this claim was not pled against Amazon, Amazon is not required to respond to the allegations in Paragraph 75 of the FAC and on that basis denies the allegations.

**FIFTH CAUSE OF ACTION**
**UNFAIR COMPETITION LAW**
**California Business & Professions Code §17200**
**(Against All Defendants)**

76. Amazon incorporates and realleges its responses to the allegations contained in Paragraphs 1 through 75, as if those responses were fully set forth herein.

77. Because Plaintiff's UCL claim has been dismissed and Plaintiff has confirmed he will not be pursuing this claim, Amazon is not required to respond to the allegations in Paragraph 77 of the FAC and on that basis denies the allegations.

78. Because Plaintiff's UCL claim has been dismissed and Plaintiff has confirmed he will not be pursuing this claim, Amazon is not required to respond to the allegations in Paragraph 78 of the FAC and on that basis denies the allegations.

79. Because Plaintiff's UCL claim has been dismissed and Plaintiff has confirmed he will not be pursuing this claim, Amazon is not required to respond to

the allegations in Paragraph 79 of the FAC and on that basis denies the allegations.

80. Because Plaintiff's UCL claim has been dismissed and Plaintiff has confirmed he will not be pursuing this claim, Amazon is not required to respond to the allegations in Paragraph 80 of the FAC and on that basis denies the allegations.

81. Because Plaintiff's UCL claim has been dismissed and Plaintiff has confirmed he will not be pursuing this claim, Amazon is not required to respond to the allegations in Paragraph 81 of the FAC and on that basis denies the allegations.

82. Because Plaintiff's UCL claim has been dismissed and Plaintiff has confirmed he will not be pursuing this claim, Amazon is not required to respond to the allegations in Paragraph 82 of the FAC and on that basis denies the allegations.

83. Because Plaintiff's UCL claim has been dismissed and Plaintiff has confirmed he will not be pursuing this claim, Amazon is not required to respond to the allegations in Paragraph 83 of the FAC and on that basis denies the allegations.

**PRAYER FOR RELIEF**

Amazon denies that this action is suitable for class treatment and denies that Plaintiff or any putative class action member is entitled to any type of remedy, relief or damages of any kind, including the relief requested in Plaintiff's Prayer For Relief, including in Paragraphs 1 through 10 thereof. Amazon further denies that this case may proceed either as a class action or as alleged individual claims by Plaintiff.

**TRIAL BY JURY**

Except to admit that Plaintiff purports to demand a jury trial, Amazon denies the allegations contained in this paragraph.

**DEFENSES**

Amazon has not completed its investigation of the facts of this case, has not completed discovery in this matter, and has not completed its preparation for trial. The defenses stated herein are based on Amazon's knowledge, information, and belief at the present time. Without conceding that it bears the burden of proof or

persuasion as to any one of them, Amazon asserts the following defenses to the allegations set forth in the FAC:

**FIRST DEFENSE**

**(Statute of Limitations)**

1. Plaintiff's causes of action and the causes of action of each putative class action member are barred in whole or in part by the applicable statutes of limitations.

**SECOND DEFENSE**

**(Collateral Estoppel/Res Judicata)**

2. Plaintiff's causes of action, and the causes of action of the putative class action members he seeks to represent, are barred in whole or in part by the doctrines of collateral estoppel and/or res judicata.

**THIRD DEFENSE**

**(Waiver)**

3. Plaintiff's causes of action, and the causes of action of the putative class action members he seeks to represent, are barred in whole or in part because such causes of action have been waived, discharged, and/or abandoned.

**FOURTH DEFENSE**

**(Release Through Prior Settlement Agreement)**

4. To the extent that Plaintiff or any putative class action member entered into any settlement agreement, any such individual has released the causes of action alleged in the FAC.

**FIFTH DEFENSE**

**(Due Process – Unconstitutional)**

5. This action cannot be maintained as a class action because class certification would violate Defendant's rights as provided by the United States and California Constitutions, including but not limited to, Amazon's right to procedural and substantive safeguards, which include traditional defenses to liability.

**SIXTH DEFENSE**

**(Damages Unconstitutionally Excessive)**

6. This action cannot be maintained as a class action because the damages that Plaintiff and the putative member(s) of the purported class seek would be disproportionate to the harm alleged or suffered by putative class members and would be unconstitutionally excessive.

**SEVENTH DEFENSE**

**(Lack of Willfulness)**

7. Amazon is not liable to Plaintiff or any putative member(s) of the purported Fair Chance Class, but even if it were, Amazon was not grossly negligent and did not willfully fail to comply with any requirements of the Fair Chance Act.

**EIGHTH DEFENSE**

**(No Scienter)**

8. Amazon is not liable for any damages, including any punitive damages, because its reading of its obligations under the Fair Chance Act, to the extent there were any such obligations, is not objectively unreasonable and Amazon did not act with the requisite scienter to impose damages.

**NINTH DEFENSE**

**(No Damages)**

9. Plaintiff and any putative member(s) of the purported class's causes of action are barred or limited, in whole or in part, because they have suffered no damages as a result of the matters alleged in the FAC.

**TENTH DEFENSE**

**(Failure to Mitigate)**

10. To the extent Plaintiff and any putative member(s) of the purported class seek actual damages from Amazon, any such claim for damages is barred by the failure to mitigate damages.

**ELEVENTH DEFENSE**

**(Good Faith)**

11. Amazon is not liable to Plaintiff or any putative member(s) of the purported class because Amazon followed reasonable procedures and otherwise made good faith efforts to comply with the California Fair Chance Act.

**TWELFTH DEFENSE**

**(Unconstitutionally Vague)**

12. Amazon is not liable because the California Fair Chance Act is unenforceable, in whole or in part, because it is unconstitutionally vague and ambiguous.

**THIRTEENTH DEFENSE**

**(Lack of Standing)**

13. Plaintiff lacks standing to bring any of his claims. Among other things, Plaintiff cannot show an injury-in-fact or any connection between any alleged injury and the conduct complained of in the FAC.

**FOURTEENTH DEFENSE**

**(Lack of Standing – Putative Class)**

14. This action cannot be maintained as a class action because Plaintiff seeks to certify a putative class that consists of members who lack standing and have not suffered any injury-in-fact as a result of any alleged act or omission by Amazon.

**FIFTEENTH DEFENSE**

**(Not Amenable to Class Treatment)**

15. This action cannot be maintained as a class action because the named Plaintiff and the putative class cannot satisfy the requirements of Rule 23 of the Federal Rules of Civil Procedure.

**SIXTEENTH DEFENSE**

**(Lack of Commonality and Predominance of Individualized Issues)**

16. This action cannot be maintained as a class action, for various reasons, including, but not limited to, that: the questions of fact at issue are not common to the alleged class, but rather, are highly specific and will vary from person to person, class membership is not ascertainable, and Plaintiff's claim is not typical of other putative class members.

**SEVENTEENTH DEFENSE**

**(Failure to Exhaust Administrative Remedies)**

17. The California Fair Chance Act claims brought on behalf of Plaintiff and other putative class members are barred, in whole or in part, because Plaintiff and/or other putative class members failed to timely and/or adequately and/or fully exhaust their administrative remedies with the appropriate administrative agency of the State of California.

**EIGHTEENTH DEFENSE**

**(Exceeds Scope of Administrative Charge)**

18. The California Fair Chance Act claims brought on behalf of Plaintiff and other putative class members are barred, in whole or in part, to the extent the FAC's allegations exceed the scope of any administrative charge(s) that Plaintiff and/or other putative class members filed with the appropriate administrative agency of the State of California.

**NINETEENTH DEFENSE**

**(After-Acquired Evidence)**

19. To the extent that Amazon acquires or has acquired any evidence of wrongdoing by Plaintiff, which wrongdoing would have otherwise resulted in the rescinding of Plaintiff's conditional job offer or termination of his employment, such after-acquired evidence shall bar and/or limit the amount of damages Plaintiff can recover on his claims, assuming *arguendo*, he is able to establish liability.

## RESERVATION OF RIGHTS

Amazon hereby gives notice that it intends to rely upon any other additional defense(s) that is now or may become available, or appear during, or as a result of discovery proceedings in this action, and hereby reserves it right to amend its Answer to assert such defense(s).

## PRAYER FOR RELIEF

WHEREFORE, Amazon prays:

1. That Plaintiff take nothing against Amazon by reason of the FAC, and that the FAC be dismissed with prejudice;

2. That the Court deny Plaintiff's request to certify this action as a class action;

3. That judgment be entered in favor of Amazon and against Plaintiff on all claims for relief;

4. That Amazon be awarded its costs of suit incurred herein; and

5. That the Court award Defendants such other and further relief as it deems just and proper.

Dated: August 23, 2023

MORGAN, LEWIS & BOCKIUS LLP

By: */s/ Andrew P. Frederick*
Andrew P. Frederick
Aleksandr Markelov
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AMAZON.COM SERVICES, LLC;
AMAZON LOGISTICS